

Abhyjeet Mahesh Bhansali vs Maloo Vidhi Kewalchand ... on 4 November, 2023

Author: Nupur Bhati

Bench: Nupur Bhati

[2023:RJ-JD:37886]

HIGH COURT OF JUDICATURE FOR RAJASTHAN AT
JODHPUR

S.B. Civil Writ Petition No. 17537/2023

Abhyjeet Mahesh Bhansali S/o Shri Mahesh Shah, Aged About 31
Years, By Caste - Bhansali, R/o Plot No. 375, Hasmukh Mansion ,
B-503, 14Th B Road , Khar West , Mumbai -400052 (Maharashtra)

---Petitioner

Versus

Maloo Vidhi Kewalchand W/o Shri Abhyjeet Mahesh Bhansali, D/o
Shri Kewalchand, Aged About 31 Years, By Caste Maloo, R/o Plot
No. 120 , Narpat Nagar , Pal Road, Jodhpur 342008 (Raj.)

---Respondent

For Petitioner(s)	:	Mr. Sanjeet Purohit
For Respondent(s)	:	Mr. Rajat Arora for Mr. K.S. Rajpurohit, AAG

HON'BLE DR. JUSTICE NUPUR BHATI

Order 04/11/2023

1. The present petition has been filed by the petitioner under Articles 226 and 227 of the Constitution of India with the following prayers:-

"It is therefore, most humbly and respectfully prayed that this petition for writ is the nature of Certiorari may kindly be allowed. The entire record pertaining to the present case may kindly be called for and reviewed judicially. By an appropriate writ, order or direction.:

(i) the impugned order dated 18.10.2023 (Annex-3) passed by the learned Family Court No.1, Jodhpur; may kindly be quashed and set aside.

(ii) the statutory period of six months specified under Section 13B(2) of Hindu Marriage Act, 1955 may kindly be waived off.

(iii) The learned Family Court No.1 may kindly be directed to proceed with the matter immediately without [2023:RJ-JD:37886] (2 of 5) [CW-17537/2023] waiting for the cooling period and pass the decree of divorce in accordance with law in Civil Original Suit No.1091/2023."

2. Brief facts of the case are that marriage of the petitioner and the respondent was solemnized on 09.12.2020 as per the Hindu Customs and rituals. After the marriage, the respondent went to her matrimonial house and resided with the petitioner and his family members.

3. On account of marital disharmony and dispute between the petitioner and the respondent, they mutually filed an application under Section 13B of the Hindu Marriage Act, 1955 on 26.09.2023 before the court below. The court below rejected the application of the petitioner and the respondent vide order dated 18.10.2023 and thus, being aggrieved thereof, the present writ petition has been preferred.

4. Despite the best efforts of the parties to restore conjugal relations and in spite of regular counselling by their near relatives, the matrimonial dispute between them could not be settled, the relations between the parties have become sour and it is impossible for both of them to continue the marriage, and for which, the respective families have also extended their consent, and therefore the parties jointly filed an application under Section 13-B of the Act of 1955 seeking divorce by mutual consent before the Court below on 26.09.2023.

5. Learned counsel for the parties, jointly submit that petitioner and the respondent have mutually decided to end their marriage and accordingly, they have moved an application under Section 13B of the Hindu Marriage Act, 1955. It has further been [2023:RJ-JD:37886] (3 of 5) [CW-17537/2023] submitted by the learned counsel for the parties that in the case of Amardeep Singh Vs. Harveen Kaur ; (2017) 8 SCC 746, rendered by Hon'ble the Apex Court, the statutory period of six months as specified under Section 13B(2) of the Hindu Marriage Act, 1955, was said to be waived and in the present case also, all the conditions are fulfilled. Thus, the court below has erred in refusing the waiver of six months statutory period for the order impugned dated 18.10.2023 (Annexure-3). Learned counsel for the parties, therefore, jointly prayed that the order impugned dated 18.10.2023 (Annexure-3) deserves to be quashed and set aside in light of the judgment rendered by Hon'ble the Apex Court in the case of Amardeep Singh (supra).

6. Heard learned counsel for the parties; perused the record of the case, along with the impugned order and the judgment cited at the Bar.

7. The Hon'ble Apex Court in the case of Amardeep Singh (supra) has held as under :-

"19. Applying the above to the present situation, we are of the view that where the Court dealing with a matter is satisfied that a case is made out to waive the statutory period under Section 13-B(2), it can do so after considering the following :

- i) the statutory period of six months specified in Section 13-B(2), in addition to the statutory period of one year under Section 13-B(1) of separation of parties is already over before the first motion itself;
- ii) all efforts for mediation/conciliation including efforts in terms of Order 32-A Rule 3 CPC/Section 23(2) of the Act/Section 9 of the Family Courts Act to reunite the [2023:RJ-JD:37886] (4 of 5) [CW-17537/2023] parties have failed and there is no likelihood of success in that direction by any further efforts;
- iii) the parties have genuinely settled their differences including alimony, custody of child or any other pending issues between the parties;
- iv) the waiting period will only prolong their agony.

The waiver application can be filed one week after the first motion giving reasons for the prayer for waiver. If the above conditions are satisfied, the waiver of the waiting period for the second motion will be in the discretion of the court concerned.

20. Since we are of the view that the period mentioned in Section 13-B(2) is not mandatory but directory, it will be open to the Court to exercise its discretion in the facts and circumstances of each case where there is no possibility of parties resuming cohabitation and there are chances of alternative rehabilitation."

8. After taking into consideration the facts of the present case, this Court is of the opinion that the conditions set out by the Hon'ble Apex Court in Amardeep Singh (supra) are fulfilled in the present case.

9. In light of the facts and circumstances of the case, particularly the fact that the parties are sufficiently educated and are aware of their rights and have mutually decided to end their matrimony finding no hope/chance of reconciliation, as also keeping into due consideration, the precedent law laid down by the Hon'ble Apex Court in Amardeep Singh (supra), this Court is of the opinion that joint application preferred by the parties for waiver of the statutory period of six months, specified under Section 13-B(2) of the Act of 1955, deserves acceptance.

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10. Hence, the instant writ petition is allowed. The impugned order dated 06.06.2023 passed by the court below is quashed and set aside and the application filed by the parties for waiver of the statutory period of six months specified under Section 13B(2) of the Act of 1955 is hereby allowed. Accordingly, in the present case, the statutory period of six months specified under Section 13B(2) of the Act of 1955 is waived, in exercise of extraordinary powers conferred upon this Court, under Article 226 of the Constitution of India.

11. The parties are directed to remain present before the learned Court below for the second motion on 08.11.2023. The learned trial court shall pass the necessary orders on the same day and shall ensure that the requisite Demand Draft is handed over to the respondent-wife before the Court below itself, strictly in accordance with law.

12. All pending applications stand disposed of.

(DR. NUPUR BHATI),J 44-/Devesh/-

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